

CHAPTER 2.

An Act to make provision for restricting the necessity of the re-election of Members of the House of Commons on acceptance of office, and to make provision as to the right of certain Ministers to sit in the House of Commons.
[27th February 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Amendment
of law as to
necessity of
re-election of
Ministers.

1.—(1) Notwithstanding anything in any Act, a member of the Commons House of Parliament shall not vacate his seat by reason only of his acceptance of an office of profit if that office is an office the holder of which is capable of being elected to, or sitting or voting in, that House, and if such acceptance has taken place within nine months after the issue of a proclamation summoning a new Parliament :

Provided that this section shall not apply to the acceptance of any office mentioned in the schedule to this Act, nor shall it affect the provisions of any Act imposing a limit on the number of Secretaries or Under Secretaries of State who may sit and vote in the Commons House of Parliament.

30 & 31 Vict.
c. 102.
31 & 32 Vict.
c. 48.
31 & 32 Vict.
c. 49.

(2) Where by virtue of this section a member of the Commons House of Parliament does not vacate his seat by reason of his acceptance of any of the offices mentioned in Schedule H. of the Representation of the People Act, 1867, and Schedule H. of the Representation of the People (Scotland) Act, 1868, and Schedule E. of the Representation of the People (Ireland) Act, 1868, as amended by any subsequent enactment, he shall, for the purposes of section fifty-two, section fifty-one, and section eleven of those Acts, respectively, be treated as if he had been returned as a member to serve in Parliament since the acceptance by him of such office.

(3) This section shall be deemed to have had effect as from the first day of January nineteen hundred and nineteen.

Right of cer-
tain Ministers
to sit in the
House of
Commons.

2. Where, before or after the passing of this Act, a member of His Majesty's Privy Council has been or is appointed to be a Minister of the Crown at a salary, without any other office being assigned to him, he shall not by reason thereof be deemed to have been or to be incapable of being elected to or of sitting or voting in the Commons House of Parliament, and the office of such Minister shall be deemed to be an office included in the above-mentioned schedules :

Provided that not more than three Ministers to whom this section applies shall sit as members of that House at the same time.

3. This Act may be cited as the *Re-election of Ministers Act, 1919.* Short title.

SCHEDULE.

ACCEPTED OFFICES.

Office of Steward or Bailiff of His Majesty's three Chiltern Hundreds Section 1. of Stoke, Desborough and Burnham.

Office of Steward or Bailiff of the Manors of East Hendred Northstead or Hempholme.

CHAPTER 3.

An Act to make temporary provision for the regulation of Air Navigation and for purposes connected therewith.
[27th February 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) It shall be lawful for a Secretary of State by order to regulate air navigation over the British Islands and the territorial waters adjacent thereto, and in particular, but without derogating from the generality of the above provision, he may by any such order provide for—

Power to regulate air navigation.

- (a) the grant, suspension and revocation of licences to pilots and other persons engaged in the navigation of aircraft, especially those used for carrying passengers, goods or mails ;
- (b) the registration, identification, inspection and certification of aircraft, especially those used for carrying passengers, goods or mails ;
- (c) the licensing, inspection and regulation of aerodromes ;
- (d) the conditions under which aircraft may be used for carrying goods, mails and passengers ;
- (e) the conditions under which goods and mails may be conveyed in aircraft into or from the British Islands or from one of the British Islands to another.

(2) If any person contravenes or fails to comply with the provisions contained in any such order, he shall be guilty of an offence under the Aerial Navigation Act, 1911 :

Provided that, if proceedings are taken by the Commissioners of Customs and Excise for contravention of, or failure to

1 & 2 Geo. 5,
c. 4.